



CHAPTER 16.

An Act to provide for extensions of time in relation to the discharge of duties imposed, or the exercise of powers conferred, by statutory provisions of a local or private nature, and in relation to the exercise of powers to purchase, or powers of re-entry exercisable in relation to, public utility undertakings. [25th April 1940.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Where, by or by virtue of provisions regulating the discharge or exercise of a duty or power to which this Act applies, a time is limited or a date is fixed within or at which the duty is to be discharged, or the power may be exercised, or an exercise of the power is to take effect, those provisions may be modified as mentioned in subsection (2) of this section by an order made by the appropriate Minister, if an application in that behalf is duly made to him during the period of the present emergency and he is satisfied that such modification is requisite or expedient by reason of any circumstances directly or indirectly attributable to war.

Power of
appropriate
Minister to
extend time.

(2) An order made under this Act may provide for the extension of any time limited as aforesaid by any period not longer than three years, for the postponement

of a date fixed as aforesaid in relation to the discharge of a duty by not more than three years, or for enabling a power to be exercised, or the exercise of a power to take effect, at any date not more than three years later than a date fixed as aforesaid in relation thereto :

Provided that no such order shall contain any provision that would have the effect of reducing the length of any period of notice required to be given in relation to the discharge of a duty or the exercise of a power.

(3) The duties and powers to which this Act applies are—

(a) any duty or power imposed or conferred by a local or private Act, an order confirmed by an Act, or an order of a local or private nature made under an Act; and

(b) any power to purchase, or power of re-entry exercisable in relation to, a public utility undertaking, or part of such an undertaking :

Provided that this Act shall not apply to a duty or power imposed or conferred by an Act passed, or an order made, after the passing of this Act, unless the contrary intention appears in that Act or order.

Provisions
as to appli-
cations and
orders for
extension.

2.—(1) An application for an order under this Act must be made before the expiration of the time within which, or the date at which, the duty to which the application relates is to be discharged, or the power to which it relates may be exercised, but shall not be made more than three years before the expiration of that time, or before that date, as the case may be :

Provided that, if that time expired or that date fell on or after the twenty-first day of February nineteen hundred and forty, such an application may be made within three months from the passing of this Act.

(2) An application for an order under this Act may be made by or on behalf of the person on whom the duty is imposed or the power is conferred, or by or on behalf of any other person appearing to the appropriate Minister to be interested.

(3) Before deciding whether or not to make an order under this Act, the appropriate Minister may require the fulfilment by the applicant for the order, in such manner

as may be specified in the requirement, of such conditions with respect to the publication of notices, and the giving of notice to such persons, as may be so specified, and shall afford to any person appearing to the appropriate Minister to be likely to be affected by the making of the order an opportunity of making representations to him, and may, if he thinks fit, cause a local inquiry to be held.

The provisions of subsections (2) to (5) of section two hundred and ninety of the Local Government Act, 1933, shall apply to an inquiry held under this subsection as they apply to inquiries held under that section, as if for references therein to a department there were substituted references to the appropriate Minister. 23 & 24
Geo. 5. c. 51.

(4) An order under this Act shall have effect notwithstanding that the time limited or date fixed by the provisions thereby modified has expired or passed before the order takes effect.

(5) As soon as may be after making an order under this Act, the appropriate Minister shall cause to be published in the Gazette (that is to say, the London Gazette, the Edinburgh Gazette, or the Belfast Gazette, or two or all of them, as the circumstances appear to him to require), and in such other manner as appears to him to be best adapted for informing persons affected, a notice stating that the order has been made and specifying a place where copies thereof may be obtained.

(6) When an order has been made under this Act in relation to a duty or power, the order shall be treated for the purposes of this Act as a provision regulating the discharge or exercise of the duty or power, and the order may be modified accordingly by a subsequent order so made.

(7) Where the provisions regulating the discharge or exercise of a duty or power limit a time or fix a date as mentioned in subsection (1) of section one of this Act in relation to the discharge or exercise thereof on successive occasions, an application for an order under this Act in relation thereto, and any order made on that application, must be related to the discharge or exercise thereof on a particular occasion :

Provided that an order made in relation to the discharge or exercise thereof on any occasion may provide

for the postponement of the next or any subsequent occasion for the discharge or exercise thereof by any period not longer than that of the extension or postponement for which the order provides in relation to that occasion.

Appropriate
Minister.

3.—(1) In this Act the expression “the appropriate Minister” means, in relation to any duty or power, the Secretary of State or other Minister of the Crown in charge of the government department concerned with the purposes for which the duty or power is imposed or conferred.

(2) If any question arises as to the Secretary of State or other Minister of the Crown to whom an application for an order under this Act should be made, the question shall be determined by the Treasury whose decision shall be final, and the validity of an order made for the purposes of this Act by a Secretary of State or other Minister of the Crown shall not be called in question on the ground that he was not the appropriate Minister.

(3) The Minister of Transport may exercise through the Electricity Commissioners any functions of his under this Act as the appropriate Minister in relation to a duty or power imposed or conferred for purposes connected with the supply of electricity.

Application
to Scotland.

4. In the application of this Act to Scotland—

(a) the last preceding section shall have effect as if at the end of subsection (1) thereof the following proviso were inserted—

“ Provided that where the duty or power was imposed or conferred by a provisional order confirmed under the Private Legislation Procedure (Scotland) Act, 1936, or under any Act repealed by that Act, ‘the appropriate Minister’ means the Secretary of State ”;

(b) subsection (3) of section two shall have effect as if subsections (2) to (5) of section two hundred and ninety of the Local Government Act, 1933, applied to Scotland with the substitution of references to an order for references to a summons, and the omission of the word “summarily” in subsection (4) and of the words from “and every such order” in subsection (5) to the end of the subsection.

26 Geo. 5. &
1 Edw. 8.
c. 52.

5.—(1) This Act shall extend to Northern Ireland as respects a duty or power imposed or conferred for purposes relating to matters in respect of which the Parliament of Northern Ireland has not power to make laws, but save as aforesaid this Act shall not extend to Northern Ireland.

Application to Northern Ireland.

(2) In the application of this Act to Northern Ireland, subsection (3) of section two shall have effect as if subsections (2) to (5) of section two hundred and ninety of the Local Government Act, 1933, applied to Northern Ireland.

6.—(1) This Act may be cited as the Special Enactments (Extension of Time) Act, 1940.

Short title and interpretation.

(2) In this Act the expression "the period of the present emergency" means the period beginning with the date of the passing of this Act and ending with such day as His Majesty may by Order in Council declare to be the day on which the emergency that was the occasion of the passing of this Act came to an end.

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FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of
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